



Republic of the Philippines
Province of Sorsogon
MUNICIPALITY OF PRIETO DIAZ

LGU TIN: 000794065
Official Email Add: sbprietodiaz@gmail.com



FILE COPY

Office of the Secretary to the Sangguniang Bayan

OFFICE of the SANGGUNANG BAYAN
LOCAL GOVERNMENT UNIT
Prieto Diaz, Sorsogon

RELEASED

BY: PINKY E. DESTURA

DATE: 10/2/25 TIME: 8:21 am

1st Endorsement
October 1, 2025

Respectfully transmitted to **Hon. ROMEO D. DOMASIAN**, PhD., the herein attached Sangguniang Bayan Resolution No. 197-2025 entitled: **A RESOLUTION AUTHORIZING THE MUNICIPAL MAYOR, HON. ROMEO D. DOMASIAN TO ENTER INTO A MEMORANDUM OF AGREEMENT (MOA) WITH THE PROVINCIAL GOVERNMENT OF SORSOGON REPRESENTED BY HONORABLE GOVERNOR JOSE EDWIN HAMOR, FOR THE TRANSFER OF FUND PURPOSELY FOR ASSISTANCE TO INDIVIDUALS IN CRISIS SITUATIONS (AICS) IN THE MUNICIPALITY OF PRIETO DIAZ, SORSOGON** for his information and appropriate action.

OFFICE OF THE MUNICIPAL TREASURER

RECEIVED

DATE: 10-2-25
BY: 2nd Edmundo
TIME: 9:11 am

BERNADETTE R. ESPEÑA – YAO
Secretary to the Sangguniang Bayan

OFFICE OF THE MAYOR
LGU PRIETO DIAZ, SORSOGON

RECEIVED

By: _____
Date: 10/2/25
Time: 9:00

Cc:

- Ms. Betty Arines
MSWDO
- Ms. Gemma Ferrer
Municipal Treasurer
- Ms. Maribel Aldon
Municipal Accountant
- Ms. Linda Lim
Municipal Budget Officer

OFFICE OF THE
MUNICIPAL ACCOUNTANT
PRIETO DIAZ, SORSOGON

RECEIVED

DATE: 10-2-25 TIME: 9:09 am
BY: EVELYN B. REGES

MUNICIPAL SOCIAL WELFARE AND
DEVELOPMENT OFFICE
PRIETO DIAZ, SORSOGON

RECEIVED

DATE: 10-2-25 RECEIVED BY: _____





Republic of the Philippines
Province of Sorsogon
MUNICIPALITY OF PRIETO DIAZ
LGU TIN: 000794065
Official Email Add: sbprietodiaz@gmail.com



Office of the Sangguniang Bayan

EXCERPT FROM THE MINUTES OF THE REGULAR SESSION OF THE 12TH SANGGUNIANG BAYAN OF PRIETO DIAZ, SORSOGON HELD ON SEPTEMBER 30, 2025 AT ITS SESSION HALL

PRESENT:

Hon. Avon D. Domalaon, MPA	Municipal Vice Mayor/ Presiding Officer
Hon. Ryand D. Diño	Sangguniang Bayan Member
Hon. Vicente B. Bayoca	Sangguniang Bayan Member
Hon. Bienvenido D. Ayo, Jr.	Sangguniang Bayan Member
Hon. Joseph H. Yap, Jr.	Sangguniang Bayan Member
Hon. Alexander D. Destura	Sangguniang Bayan Member
Hon. Juan D. Ebid	Sangguniang Bayan Member
Hon. Lilia D. Oliveres	Sangguniang Bayan Member
Hon. Antonio J. Emano, Jr.	LnB Pres./S. B. Member
Hon. Rene Joseph D. Domasian	SKMF Pres./S. B. Member

ABSENT:

Hon. Jo Madel D. Domalaon	S. B. Member – on leave
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RESOLUTION NO. 197-2025

Introduced by Hon. Antonio Emano, Jr.

A RESOLUTION AUTHORIZING THE MUNICIPAL MAYOR, HON. ROMEO D. DOMASIAN TO ENTER INTO A MEMORANDUM OF AGREEMENT (MOA) WITH THE PROVINCIAL GOVERNMENT OF SORSOGON REPRESENTED BY HONORABLE GOVERNOR JOSE EDWIN HAMOR, FOR THE TRANSFER OF FUND PURPOSELY FOR ASSISTANCE TO INDIVIDUALS IN CRISIS SITUATIONS (AICS) IN THE MUNICIPALITY OF PRIETO DIAZ, SORSOGON.

WHEREAS, the Provincial Government and the Municipal Government of Prieto Diaz are both implementing the Assistance to Individuals in Crisis Situation (AICS) Program, which aims to provide immediate, appropriate, and compassionate support to individuals and families affected by crisis situations;

WHEREAS, the types of assistance under the AICS Program may include, but are not limited to, medical, burial, educational, and financial assistance, depending on the assessed needs of the beneficiaries;

WHEREAS, the Provincial Government shall transfer the total amount of five hundred thousand pesos (P 500,000.00) only to the MLGU of Prieto Diaz for the use in the AICS program, subject to the usual auditing and accounting rules and regulations;

WHEREAS, on motion of Hon. Alexander Destura, duly seconded by Hon. Juan Ebid;

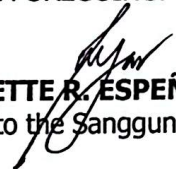
NOW, THEREFORE, be it as it is;

HEREBY RESOLVED, to authorize the Municipal Mayor, Hon. Romeo D. Domasian to enter into a Memorandum of Agreement (MOA) with the Provincial Government Of Sorsogon represented by Honorable Governor Jose Edwin Hamor, for the transfer of fund purposely for Assistance to Individuals In Crisis Situations (AICS) in the municipality of Prieto Diaz, Sorsogon;

FINALLY RESOLVED, to transmit this resolution to Hon. Romeo Domasian, Municipal Mayor; copy furnished Ms. Betty Arines, MSWDO; Ms. Gemma Ferrer, Municipal Treasurer; Ms. Maribel Aldon, Municipal Accountant; Ms. Linda Lim, Municipal Budget Officer; and all concerned for their information and appropriate action;

APPROVED UNANIMOUSLY.

I HEREBY CERTIFY TO THE CORRECTNESS OF THE FOREGOING.


BERNADETTE R. ESPEÑA-YAO
Secretary to the Sangguniang Bayan

ATTESTED:


Hon. AVON D. DOMALAON, MPA
Municipal Vice Mayor/Presiding Officer

MEMORANDUM OF AGREEMENT

KNOW ALL MEN BY THESE PRESENTS:

This MEMORANDUM OF AGREEMENT made and executed by and between

The **PROVINCIAL GOVERNMENT OF SORSOGON**, a local government unit with its principal office at Capitol Building, Sorsogon City, represented herein by its Governor, **EDWIN "BOBOY" B. HAMOR**, hereinafter referred to as the "**PROVINCE**".

JOSE EDWIN B. HAMOR
GOVERNOR

-and-

The **LOCAL GOVERNMENT UNIT OF PRIETO DIAZ**, Sorsogon, with office address at PRIETO DIAZ, Sorsogon, represented herein by its Mayor, **ROMEO D. DOMASIAN**, hereinafter referred to as the "**LGU**".

Collectively referred to as the "**Parties**"

WITNESSETH:

WHEREAS, the PROVINCE implements the Assistance to Individuals in Crisis Situation (AICS) Program, which aims to provide immediate, appropriate, and compassionate support to individuals and families affected by crisis situations;

WHEREAS, the types of assistance under the AICS Program may include, but are not limited to, medical, burial, educational, and financial assistance, depending on the assessed needs of the beneficiaries;

WHEREAS, to enhance the program's accessibility and responsiveness at the local level, the PROVINCE shall download funds to component LGUs for implementation;

WHEREAS, the PROVINCE and the LGUs are partners in the implementation of social services for the poor, vulnerable and marginalized sectors and there is a need for a Memorandum of Agreement (MOA) to capture the terms of the cooperation mechanism to ensure effective and efficient delivery of AICS to qualified beneficiaries including supplementary issuances thereto, and other pertinent accounting, budgeting and auditing laws, rules and regulations;

WHEREAS, the City/Municipal Social Welfare and Development Office (C/MSWDO) shall be the primary implementing office at the LGU level;

NOW, THEREFORE, for and in consideration of the foregoing premises, the Parties hereby mutually agree to enter into this agreement under the following terms and conditions:

I. APPLICABILITY

For purposes of this MOA, the implementation of AICS Program in the abovementioned LGU shall be governed in this manner:

The Local Government Unit (LGU) is hereby authorized to disburse various forms of financial assistance, subject to the established protocols and criteria set forth in its existing Assistance to Individuals in Crisis Situations (AICS) guidelines. Eligibility for such assistance shall be exclusively extended to individuals who, upon due assessment, are determined to be bonafide residents of the aforementioned LGU.

MYRA Z. RELATIVO, RSW
PGDH-PSWDO

ROMEO D. DOMASIAN
MAYOR

BETTY G. ARINES
MSWDO

II. ROLES AND RESPONSIBILITIES OF THE PARTIES

A. The PROVINCE shall:

1. Transfer funds to the LGU within fifteen (15) calendar days from the submission of the signed and notarized MOA and its supporting documents;
 - a) *Sanggunian* Resolution authorizing the Local Chief Executive (LCE) to enter into a Memorandum of Agreement with PROVINCE.
2. The PROVINCE shall transfer the total amount of **FIVE HUNDRED THOUSAND PESOS ONLY (PhP 500,000.00)**, but its release shall be subject to availability of funds. It is understood that no succeeding transfer of funds for the AICS program shall be allowed without the prior transfer of funds having been fully liquidated in accordance with existing accounting and auditing rules and regulations. Provided that all funds are liquidated by the 31st of December 2025;
3. Comply with the provisions of COA Circular 94-013 dated December 13, 1994 as a Source Agency, to wit:
 - a) Obligate the allotment for the project to be implemented based on the MOA;
 - b) Issue a check in the name of LGU;
 - c) Maintain a subsidiary ledger of the cash transferred pertaining to the project;
 - d) Require the LGU to submit the Report of Check Issued (RCI) and the Report of Disbursement (RD) and furnish the latter with a copy of the journal voucher taking up the expenditures. Upon receipt of the copy of the Certificate of Settlement and Balances (CSB) and the Credit Notice (CN) issued by the LGU Auditor, the Accountant shall draw a journal voucher restoring back the amount previously credited for any disallowance. The LGU shall be furnished with a copy of the journal entry voucher; and
 - e) Issue the official receipt for the unused balance and the refunded disallowance remitted by the LGU.
4. Enforce the submission of a liquidation and other reports by the LGU through a demand letter, in case of failure to comply with the submission of reports mentioned under Section B of this MOA;

JOSE EDWIN B. HAMOR
GOVERNOR

ROMEO D. DOMASIAN
MAYOR

B. The LGU shall:

1. Submit to the PROVINCE OF SORSOGON the signed and notarized MOA and the supporting documents to facilitate transfer of funds.
2. Comply with the provisions of COA Circular 94-013 dated December 13, 1994 as the Implementing Agency, to wit:
 - a) Issue an official receipt for every amount received from the PROVINCE;
 - b) Deposit the amount with its authorized depository bank;
 - c) Keep separate subsidiary records for the trust liability whether or not a separate bank account is maintained;
 - d) The Accountable Officer (AO) shall prepare the RCI and the RD and shall submit them with all supporting vouchers/payrolls and documents to the LGU Accountant. These reports shall be approved by the Local Chief Executive;
 - e) Within ten (10) days after receipt from the AO, the LGU Accountant shall verify the Reports, provide accounting entries, record and submit the

MYRA Z. RELATIVO, RSW
PGDH-PSWDO

BETTY G. ARINES
MSWDO

MYRA Z. RELATIVO, RSW
PGDH-PSWDO

BETTY G. ARINES
MSWDO

duplicate copies of the Reports with all the originals of vouchers/payrolls and all supporting documents to the LGU Auditor.

The Accountant shall ensure that only expenses for the project are included in the Reports. The original copy of the Reports shall be submitted to the PLGU.

- f) Record the disallowance in audit after receipt of the CSB and the CN issued by the LGU Auditor and require the settlement of any suspension and disallowance;
- g) Return to the PROVINCE any unused balance and refund of disallowance upon completion of the project;
- h) Submit a copy of Full Liquidation Report received by COA within 30 days after the last day of transactions.

III. ACCOUNTABILITY

The funds released by PROVINCE shall be solely and exclusively used for the implementation of the AICS program as payment for the beneficiaries as provided for in this MOA subject to the usual auditing laws, rules and regulations.

Once the fund is transferred to the LGU, subsequent transfer of such fund to any other LGU or entity shall not be allowed. In no case shall the fund transferred be utilized for the payment of additional compensation to employees in the form of allowances, incentive pay, bonuses, honorarium, or other forms of additional compensation, nor shall it be used to create new positions, to augment salaries of regular personnel or to purchase motor vehicles.

The Local Chief Executive shall take full responsibility in the proper implementation of the AICS program in the abovementioned LGU.

Violation of the provisions of this MOA shall be subject to the appropriate criminal, civil, administrative liability under existing laws, rules, and regulations. Further, this shall result in the disqualification of the LGU from future fund transfer intended for the AICS Program.

IV. RESOLUTION OF ISSUES

Cases and issues not covered in this MOA shall be submitted to the PROVINCE for resolution.

V. SEPARABILITY

In case any provision hereof or any part thereof be declared void or unenforceable by competent authorities, the provision/s unaffected by such declaration shall remain valid and binding.

VI. EFFECTIVITY

This Memorandum of Agreement shall take effect upon signing hereof and shall remain valid and binding until the 31st of December 2025 or until all the obligations of the parties pertaining to the liquidation or settlement of the fund transfer have been duly performed, whichever is applicable.

JOSE EDWIN B. HAMOR
GOVERNOR

ROMEO D. DOMASIAN
MAYOR

IN WITNESS WHEREOF, the Parties hereto executed this Memorandum of Agreement this _____ day of _____, 2025 in _____.

**PROVINCIAL GOVERNMENT OF
SORSOGON**

JOSE EDWIN B. HAMOR
Governor

**LOCAL GOVERNMENT UNIT OF
PRIETO DIAZ**

ROMEO D. DOMASIAN
Mayor

SIGNED IN THE PRESENCE OF:


MYRA Z. RELATIVO, RSW
PSDH-PSWDO

BETTY G. ARINES
MSWDO

ACKNOWLEDGMENT

REPUBLIC OF THE PHILIPPINES)
_____) SS.

BEFORE ME, a Notary Public for and in the City of _____ personally appeared:

Name	Government Issued ID	Place of Issue
JOSE EDWIN B. HAMOR		
ROMEO D. DOMASIAN		

Known to me and to me known to be the same persons who executed the foregoing instrument and acknowledged to me that the same is their free act and voluntary deed.

This instrument, consisting of 4 pages, including the page on which this acknowledgment is written, has been signed on the left margin of each and every page thereof by the concerned parties and their witnesses, and sealed with my notarial seal.

WITNESS MY HAND AND SEAL on this _____ day of _____ 2025 at _____

Doc. No.;
Page No.;
Book No.;
Series of 2025